

CHAPTER 15.

An Act to remove doubts as to the validity of certain
Marriages solemnized in the Empire of Japan.

[13th December 1912.]

WHEREAS doubts have been entertained with respect to the validity of certain marriages (both or one of the parties thereto being subjects or a subject of this realm) solemnized in the Empire of Japan since the sixteenth of July eighteen hundred and ninety-nine (being the date when a treaty between Her late Majesty Queen Victoria, and His Majesty the Emperor of Japan, dated the sixteenth of July eighteen hundred and ninety-four came into force), and it is expedient to remove those doubts:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Validation
of certain
marriages.

1. All marriages (both or one of the parties thereto being subjects or a subject of this realm) solemnized before the passing of this Act in the Empire of Japan, which would have been valid if solemnized immediately before the said sixteenth of July eighteen hundred and ninety-nine, shall be and shall be deemed always to have been as valid in law as if they had been solemnized within His Majesty's dominions with the due observance of all forms required by law:

Provided that this Act shall not render valid any marriage which before the passing of this Act has been declared invalid by any court of competent jurisdiction, or affect any right dependent on the validity or invalidity thereof, or render valid any marriage either of the parties to which has subsequently during the life of the other lawfully intermarried with any other person.

Short title.

2. This Act may be cited as the Marriages in Japan (Validity) Act, 1912.

CHAPTER 16.

An Act to make provision for the Acquisition of Property
for the Extension of the Royal Scottish Museum at
Edinburgh.

[13th December 1912.]

WHEREAS it is expedient to extend the Royal Scottish Museum, situate at Chambers Street in the city of Edinburgh:

And whereas for that purpose it is expedient that the Commissioners of Works should be empowered to acquire certain land and buildings situated in the city parish of the said city of Edinburgh :

And whereas those lands and buildings cannot be acquired without the authority of Parliament :

And whereas duplicate plans describing the situation of the land proposed to be acquired, with the houses and buildings thereon, with a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees, and of the occupiers thereof (in this Act respectively referred to as the deposited plans and the deposited book of reference), have been deposited with the sheriff clerk of the county of Midlothian :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The Commissioners may purchase and acquire for the purposes of this Act all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to purchase land

2.—(1) For the purpose of the purchase and acquisition of land under this Act, the Lands Clauses Acts shall, subject to the provisions of this Act, be incorporated with this Act with the following exceptions and modifications :— Incorporation of Lands Clauses Acts.

- (a) The provisions relating to the sale of superfluous land and access to the special Act shall not be incorporated with this Act :
- (b) In the construction of this Act, and of the incorporated Acts, this Act shall be deemed to be the "special Act," and the Commissioners shall be deemed to be the "promoters of the undertaking" :
- (c) The bond required by section eighty-four of the Lands Clauses Consolidation (Scotland) Act, 1845, shall be under the common seal of the Commissioners, and shall be sufficient without the addition of the securities mentioned in that section : 8 & 9 Vict c. 19
- (d) All claims for compensation made upon the Commissioners under this Act, or any Act incorporated herewith, shall, if the person claiming has no greater interest in the land in respect of which compensation is claimed, than as tenant from year to year, or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made, be determined in manner provided by section one hundred and fourteen of the Lands Clauses Consolidation (Scotland) Act, 1845.
- (e) There may be contained in the verdict of a jury or the award of arbiters, or of an oversman, a finding that

the claimant, after having been requested in writing by the Commissioners so to do, has failed to deliver to the Commissioners a statement in writing of the amount claimed, giving sufficient particulars and in sufficient time to enable the Commissioners to make a proper offer, and where such a finding is contained in a verdict or award the provisions of the Lands Clauses Acts as to expenses of inquiries and arbitrations shall apply as if the Commissioners had offered the same sum or a greater sum than that found due by the verdict or award :

Provided that this provision shall not apply unless the written request for particulars contains a notice of the effect of this provision.

(2) The powers of the Commissioners for the compulsory purchase of land under this Act shall cease after the expiration of five years from the passing of this Act.

Extinction of
rights of way
and other
servitudes.

3. All rights of way, rights of laying down or of continuing any pipes, sewers, or drains, on, through, or under any of the lands acquired by or vested in the Commissioners under the provisions of this Act, and all other rights and servitudes in or relating to such lands shall be extinguished, and all the soil of such ways, and the property in the pipes, sewers, and drains shall vest in the Commissioners :

Provided that any person may recover from the Commissioners such compensation (if any) as they may be entitled to under any of the provisions of the Lands Clauses Acts for any rights or property of which they may be deprived in pursuance of this section, and the amount of that compensation shall be determined in manner provided by the Lands Clauses Acts as modified for the purpose of their incorporation with this Act :

Provided also that with respect to any pipes, sewers, drains, or electric lighting distributing mains or service lines belonging to the corporation of Edinburgh, the Edinburgh and District Water Trustees, and the Edinburgh and Leith Corporations Gas Commissioners respectively, within any such lands, the Commissioners shall, before they interfere with any such pipes, sewers, drains, mains, or lines, or interrupt the flow of sewage, water, gas, or electricity therein, as the case may be, give at least one month's previous written notice of their intention to the town clerk of Edinburgh, the clerk to the said Water Trustees, and the clerk to the said Gas Commissioners respectively, and the owners respectively of the said pipes, sewers, drains, mains, and lines may, at the expense of the Commissioners, remove the same and provide such new pipes, sewers, drains, mains, and lines as they may respectively consider necessary, or otherwise do everything they may deem requisite for protecting the flow of sewage, water, gas, or electricity, as the case may be.

4. The Commissioners and their surveyors, officers, and workmen may, at all reasonable time in the daytime on giving twenty-four hours' notice in writing, enter on any of the land which the Commissioners are authorised to acquire under this Act for the purpose of surveying or valuing the same.

Power to enter
on lands.

5. The Commissioners, after they have obtained possession of any land which they are authorised to acquire under this Act, may erect all such buildings, execute all such works, and do all such other things, as may in their opinion be necessary or proper for the purpose of extending the Royal Scottish Museum, and appropriating any such land for that purpose.

Power of
Commissioners
to build.

6.—(1) All expenses incurred by the Commissioners under this Act shall, so far as provision is not otherwise made for them, be defrayed out of money provided by Parliament.

Payment of
expenses and
application of
15 & 16 Vict.
c. 28.

(2) The provisions of the Commissioners of Works Act, 1852, and any Act amending that Act, shall apply in the case of the acquisition of land by the Commissioners under this Act in like manner as in the case of a purchase under that Act, and any land acquired by the Commissioners under this Act, or acquired by them before the passing of this Act for the extension of the Royal Scottish Museum, at Edinburgh, shall be held by the Commissioners for the public service in like manner as if those lands had been purchased under the Commissioners of Works Act, 1852.

7.—(1) If any omission, misstatement, or erroneous description is found to have been made in respect of any of the lands or of any of the owners, lessees, or occupiers of any of the lands delineated on the deposited plans or described in the deposited book of reference, the Commissioners, after giving ten days' notice to the owners, lessees, and occupiers of the lands affected by the proposed correction, may apply for the correction thereof to the sheriff of the county of Midlothian, and, if it appears to the sheriff that the omission, misstatement, or erroneous description arose from mistake, he shall grant a certificate accordingly.

Correction of
errors, &c. in
deposited plans
and book of
reference.

(2) The sheriff shall state in his certificate the particulars of any omission and in what respects any matter is misstated or erroneously described.

(3) A certificate granted under this section shall be deposited in the same manner as if it had originally formed part of the deposited plans or deposited book of reference (as the case may be), and shall be kept therewith, and shall be deemed to be part thereof, and upon the deposit of the certificate the deposited plan or the deposited book of reference (as the case requires) shall, for the purpose of the powers by this Act conferred on the Commissioners, be deemed to be corrected according to the certificate.

8. If any person wilfully obstructs any person acting under the authority of the Commissioners in the lawful exercise of the powers vested in them under this Act, he shall, in respect of each

Penalty for
obstruction of
Commissioners'
officers.

offence, be liable on summary conviction to a fine not exceeding five pounds.

Signature of
notices.

9. Any notice, summons, writ, or other document required to be given, issued, or signed by or on behalf of the Commissioners may be given, issued, or signed by the secretary, or assistant secretary of the Commissioners, and need not be under their common seal.

Short title.

10. This Act may be cited as the Royal Scottish Museum (Extension) Act, 1912.

CHAPTER 17.

An Act to amend the Protection of Animals Act, 1911,
in respect of its Imprisonment Penalty.

[13th December 1912.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Diminution
of penalty.
1 & 2 Geo. 5.
c. 27. s. 1(1).

1. Subsection (1) of section one of the Protection of Animals Act, 1911, shall be amended by substituting the word "three" for the word "six."

Short title.

2. This Act may be cited as the Protection of Animals Act (1911) Amendment Act, 1912.

CHAPTER 18.

An Act to continue various Expiring Laws.

[13th December 1912.]

WHEREAS the Acts mentioned in the schedule to this Act are, in so far as they are in force and are temporary in their duration, limited to expire, as respects the Acts mentioned in Part I. of that schedule, on the thirty-first day of December nineteen hundred and twelve, and, as respects the Acts mentioned in Part II. of that schedule, on the thirty-first day of March nineteen hundred and thirteen :

And whereas it is expedient to provide for the continuance as in this Act mentioned of those Acts, and of the enactments amending or affecting the same :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :